



Banijay Entertainment – All3Media

MN-85026

Phase 1 Determination

Acquisition may be put into effect

17 June 2026

1. Determination and statement of reasons

Notified acquisition	Banijay Group N.V., a listed company in Euronext Amsterdam, (together with the rest of the Banijay group, Banijay Group) and RedBird IMI (a joint venture between RedBird Capital Partners and IMI Media Group) propose to combine Banijay Group's content production and distribution business and part of its live event business (Banijay Live) and RedBird's All3Media into a newly incorporated company, Banijay Holding UK Limited (CombinedCo) (the Acquisition). Post-Acquisition, Banijay Group will hold 50% of CombinedCo's share capital and voting rates, and will have sole control. Gold Rush TopCo Limited and an affiliate of funds advised by affiliates of RedBird will together hold the other 50% of CombinedCo's share capital and voting rates.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, Banijay Group is active in the production and distribution of audiovisual content for public and private broadcasters, as well as streaming platforms, through Banijay Entertainment, globally. In Australia, Banijay Entertainment is active through its subsidiary, Endemol Shine Australia. Banijay Live's business does not operate in Australia. All3Media is a UK-based company active in the production and distribution of audiovisual content globally. All3Media does not have a physical audiovisual content production presence in Australia and has limited production activities in Australia. All3Media has carried out production activities through some subsidiaries in Australia.
Overlap and relationship between the parties	The parties overlap in the production of scripted and non-scripted audiovisual content and the licensing and distribution of broadcasting rights to such content (or third-party content) to free to air TV providers, traditional subscription TV providers and subscription video on demand providers in Australia.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form and information from third parties. The ACCC has determined that the Acquisition may be put into

	effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings: • The incremental share resulting from the Acquisition in both the production and licensing and distribution of audiovisual content (both scripted and non-scripted) in Australia is low. • CombinedCo would continue to be constrained by alternative producers and licensors and distributors of scripted and non-scripted audiovisual content in Australia including: ○ for production of audiovisual content: ITV studios, Fremantle, Warner Bros, BBC Studios, Roving Enterprises, Working Dog Productions, Thinkative TV, Village Roadshow, CJZ, Bunya Productions and Goalpost Pictures ○ for the licensing of distribution of audiovisual content, for example, Disney Media Distribution, NBC Universal Television, CBS Television International, Warner Bros, Sony Pictures, Amazon MGM, BBC Studios, ITV Studios, Fremantle, Mediawan, Bunya Productions, Goalpost Pictures, and Working Dog Productions.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act